

HEADNOTE

“In accordance with the principles of procedural economy and cost efficiency as well as a fair balance between the legitimate interests of the parties, which must be considered in the interpretation of the Rules of Procedure pursuant to Article 41(3) UPCA, the proceedings are not required to be stayed under Rule 311.1, first sentence RoP, if a party is declared insolvent only after the oral proceedings have concluded and the dispute is ready for a decision.”

COURT
Court of Appeal Luxembourg

PATENT
EP 4108782

KEYWORDS

Appeal

Insolvency of a party

PROCEEDINGS
Procedural order

Compositions and methods for analyte
detection

Article 41 Rules of Procedure

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to compositions and methods for analyte detection. According to the headnotes of the decision, proceedings need not be stayed when a party becomes insolvent after oral hearings have concluded and the case is ready for judgment, provided this approach respects procedural efficiency, cost considerations, and fair treatment of both parties' legitimate interests under the UPC Rules of Procedure.